

Sachin Singh v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 31 March 2023 · Writ - C No. 10616 of 2023 · **Clause 6.5 objection to be decided; recovery stayed till then**

HEADNOTE

Writ against an electricity bill issued in the name of the petitioner's deceased father disposed of without deciding the bill. Respondent no. 2 must decide the objection dated 16 February 2023 by a speaking order under Clause 6.5 of the Electricity Supply Code, 2005, within four weeks of receiving the order and the representation. If the petitioner files a copy of the objection within two weeks, recovery stays until that decision, which he must then abide by.

FACTUAL SUMMARY

Sachin Singh challenged an electricity bill dated 22 October 2022 issued by respondent no. 2 in the name of his father, who is stated to have died. He also sought a mandamus directing the respondents to decide his representation dated 16 February 2023. Counsel for the respondent Electricity Department stated that the objection filed by the petitioner would be decided as per the procedure prescribed under Clause 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to be decided under clause 6.5

HOLDING

The writ challenging the electricity bill is disposed of without a decision on the bill. Respondent no. 2 is directed to decide the petitioner's objection dated 16 February 2023 by a speaking order within four weeks of receiving a true attested copy of the order along with a photocopy of the representation, following the procedure under Clause 6.5 of the Electricity Supply Code, 2005. The petitioner is to file a copy of the objection before respondent no. 2 within two weeks; if he does so, recovery remains stayed until the objections are decided, and he must thereafter abide by that decision. ¶ 2-4

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided Respondent no. 2 must decide the petitioner's pending objection dated 16 February 2023 by a speaking order within four weeks of receiving the order and the representation. ¶ 3

clause-6.5-alternate-remedy-to-writ The Court did not examine the bill and disposed of the writ on the licensee's statement that the objection would be decided under Clause 6.5, with recovery stayed only until that decision if the objection is filed within two weeks. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL DATED 22 OCTOBER 2022, ISSUED IN THE NAME OF THE PETITIONER'S DECEASED FATHER, IS CORRECT OR RECOVERABLE FROM THE PETITIONER

Left to respondent no. 2's speaking order on the objection under Clause 6.5. ¶ 3-4